

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2200568

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: NAOMI TSEGGAI, ET AL

vs.

DEFENDANT: WESTERN VILLAGE OAKS
ASSOCIATION, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Appearances required.

Based on the papers submitted in connection with this motion, both Plaintiffs Naomi Tseggai and Ghenet Tekie (“Plaintiffs”) and Defendant Dollar Tree Stores, Inc. (“Dollar Tree”) believe that under the operative pleading, Plaintiffs’ May 31, 2022 First Amended Complaint (“FAC”), Dollar Tree faces potential products liability in relation to a helium balloon.

Plaintiffs have not sued Dollar Tree, or any defendant currently involved in this case (as opposed to numerous yet-to-be-identified Doe defendants) for products liability. The only defendants sued for products liability are Doe Nos. 51-80. (See FAC, p. 7.) Dollar Tree is Doe No. 4. (See May 31, 2024 Doe Amendment.) No Doe defendant within the Nos. 51-80 range has yet been identified. The identified Does are No. 1 (RealManage, LLC, identified November 1, 2022); No. 2 (Azar Mahban, identified April 28, 2023); No. 3 (Barbier Security Group, identified September 22, 2023); and No. 4 (Dollar Tree). Plaintiffs likewise have not alleged that Dollar Tree, or any defendant who has been identified thus far, did anything in relation to a helium balloon. The only defendants the FAC describes as doing anything in relation to a helium balloon are the *unidentified* Doe Nos. 51-80. (FAC, p. 7.) This means the allegations surrounding the helium balloon cannot support the *identified* defendants’ liability on any theory. For Plaintiffs to hold any of the defendants who have been identified thus far liable on a products liability theory, or on any other theory based on conduct involving a helium balloon, they would need to amend their complaint.

Dollar Tree recognizes that it is a target of the products liability claim even though that cause of action is not alleged against it. (Memorandum, p. 11, fn. 2.) Dollar Tree elected not to take advantage of this and instead challenges the products liability claim on its merits. The Court appreciates Dollar Tree’s willingness to overlook what was obviously an oversight by Plaintiffs’

counsel, but the Court cannot hold Dollar Tree liable on causes of action expressly alleged only against other defendants or based on conduct expressly attributed only to other defendants. With the operative pleading in its current state, the Court cannot entertain a summary judgment motion premised on the idea that Dollar Tree can be held liable to Plaintiffs based on this helium balloon. (See *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1576 [“The complaint serves to delimit the scope of the issues before the court on a motion for summary judgment[], and a party cannot successfully resist summary judgment on a theory not pleaded.”] [internal citation omitted].)

Given Dollar Tree’s willingness to overlook this error, the Court anticipates that Dollar Tree may be willing to withdraw its motion for summary judgment, stipulate to Plaintiffs’ amending their complaint to assert the products liability claim against Dollar Tree, and resubmit its motion once Plaintiffs have amended the FAC. Appearances are required so that the parties can discuss next steps with the Court.

If Plaintiffs amend their complaint, they should remove Dollar Tree/Doe No. 4 as a defendant from the claims they now deny that they are pursuing against Dollar Tree. Based on Plaintiffs’ discovery responses, this includes *at least* the premises liability claim. (See Def.’s Ex. 5 at Special Interrog. Nos. 5, 6.)

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV2300174

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: NICHOLAS M. JAMES and DEFENDANT: FAITH DOROTHY WATERS	
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NATURE OF PROCEEDINGS: MOTION – DISMISS

RULING

The motion to dismiss by defendant Faith Dorothy Waters, a.k.a. Faith James Waters (“Defendant”) is GRANTED. (11 U.S.C. § 524 (a)(2).)

The motion is DENIED to the extent it seeks sanctions, attorneys’ fees, and a finding of contempt for violation of the discharge injunction. Enforcement of the Section 524 discharge injunction through civil contempt lies within the exclusive jurisdiction of the United States Bankruptcy Court that issued the discharge, not this Court.

Plaintiffs’ request for sanctions under Code of Civil Procedure sections 128.7 and 1008(d) is DENIED.

Legal Standard

A discharge order “operates as an injunction against the commencement or continuation of an action, the employment of process, or an act, to collect, recover or offset” a discharged debt. (11 U.S.C. § 524 (a)(2).)

Factual and Procedural Background

This action arises out of the administration of the estate of Nicholas D. James (“Decedent”), who died on December 4, 2020. Decedent was the brother of Defendant. Plaintiffs Nicholas M. James and Tristan Scaglione (“Plaintiffs”) are Decedent’s children and Defendant’s niece and nephew. The underlying complaint, filed January 24, 2023, alleges that Defendant misappropriated funds from Decedent under a power of attorney and after his death but before her appointment as executor, and asserts claims for fraud, conversion, elder abuse, and breach of fiduciary duty. (See Complaint, 1/24/23.)